

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503670	JACKSON VS CITY OF CATHEDRAL CITY	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES -GENERAL (SET ONE) MOTION TO COMPEL PLAINTIFF'S FURTHER PRODUCTION OF DOCUMENTS IN NATIVE FORMAT WITH ASSOCIATED METADATA MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES-EMPLOYMENT, SET ONE; REQUEST FOR SANCTIONS IN THE AMOUNT OF \$5,995

Tentative Ruling:

City met its statutory obligation to meet and confer before filing this motion. (See, Decl. of Victor D. Gonzalez at ¶¶ 9-15.)

FROGs and Employment FROGs

City seeks further responses to FROG nos. 2.5, 8.8, 11.1, 12.2, 12.3, 12.6, and 14.1, and Employment FROGs nos. 201.3, 202.1, 202.2, 203.1, 205.1, 207.1, 215.1, and 215.2. However, there is no dispute that on the day after City filed this motion, Plaintiff served 2nd amended responses to these FROGs and Employment FROGs, as he had previously agreed. (Decl. of Megan Beaman Jacinto at ¶ 10, Ex. A.) This makes these motions moot. If City contends the 2nd amended responses are still insufficient, it can file a motion regarding those responses, after meeting and conferring with Plaintiff.

RFPs

City seeks an order compelling Plaintiff to produce documents responsive to RFP nos. 9, 10, 12, and 14, specifically, PL000001-PL000028, PL000070-PL000098, PL000148-PL000153, and PL000175, in their native format, with all metadata. There is no dispute that documents responsive to the disputed RFPs were provided, only that they were not provided in native form with metadata. Metadata “is discoverable if it is relevant to the claim or defense of any party and is not privileged.” (*Ellis v. Toshiba America Information System, Inc.* (2013) 218 Cal.App.4th 853, n. 5.) Here, City has provided no argument or evidence showing that the production of these documents is relevant to any of its claims or defenses. (See, generally, Motion and Gonzalez Decl.) Therefore, it has not established good cause for the production of the documents in their native format with metadata.

The motions to compel further responses to FROGs and Employment FROGs are denied as moot.

The motion to compel Plaintiff to provide documents responsive to RFPs in their native form, with metadata, is denied.

All requests for sanctions are denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306261	MANZANARES VS SYSCO CORPORATION	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Request for Judicial Notice/Evidentiary Objections

Defendants request judicial notice of (A) minute order from Rasso v. Sysco Corporation (Los Angeles Superior Court); (B) Plaintiff Manzanares' CRD complaint and right to sue letter; (C) Plaintiff Koke's CRD complaint and right to sue letter; and (D) ruling from Williams v. Sysco Riverside (Los Angeles Superior Court). In reply, Defendants also request judicial notice of rulings from (E) Williams v. Sysco Riverside (Los Angeles Superior Court).

The court grants judicial notice of Exhibits B and C. (Evidence Code §452(c).)
The court denies judicial notice of Exhibits A, D and E. They are not relevant as they are not binding rulings on this court—there is no res judicata nor collateral estoppel effect from those rulings. Accordingly, they are completely irrelevant to the issues present in this motion.

Defendants submit in reply a 29-page list of objections, that are not numbered, in violation of California Rules of Court, Rule 3.1354(b) ["Each written objection must be numbered consecutively...."].) The court rules as follows:

- Sustain as to the deposition transcripts of (objection no. 1), (5), (6) Teresa Livesay, (2) Randall Hoover, (4) Patti Cheselske. (Code Civ. Proc. § 2025.620(g); Evidence Code § 1291; *Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 882.)
- Sustain as to exhibits (objection no. 3) 8 [email], (7) 13 [internal investigation report], (8) 14 [Linked in profile].